

**Assistant Administrator Paul Anastas
Phase II Dispersant Testing
August 2, 2010
Remarks**

We have now passed the 100th day of the BP oil spill tragedy. We are relieved that the well is currently sealed and that dispersant application has been reduced to zero. Let me be clear that as of July 19 no new dispersant has been released into the Gulf of Mexico. We hope and expect that this will continue to be the case. However, this tragedy does not end with the sealing of the well. The President and the EPA have committed to the long term recovery and restoration of the Gulf Coast, one of our most precious ecosystems.

The use and application of dispersants is just one part of a much larger response-strategy to the BP spill. The strategy also includes direct recovery, containment,

burning, and skimming as important measures to keep oil off our shorelines. In this overall response plan, dispersant use was an effort of last resort. EPA recognizes that dispersant usage is an environmental tradeoff not to be taken lightly.

Rigorous daily monitoring of the environment for the effects and effectiveness of dispersants is absolutely critical. EPA has continued constant monitoring of air, water and sediments near and on the shores from the earliest days of this disaster. Jointly with the Coast Guard, we have also directed BP to monitor for dispersants in the deep sea.

We have also conducted independent toxicity tests on 8 available dispersants, including COREXIT, the dispersant applied in the Gulf of Mexico. At the end of last month, we released preliminary results on the

toxicity of dispersants alone. Recall that these tests were a comparative analysis of 8 dispersants. That report can be found on the EPA website.

Today, I am reporting on phase two of our testing. This phase includes tests on both Louisiana Sweet Crude Oil alone and on mixtures of each of the 8 dispersants combined with the Louisiana Sweet Crude Oil. Results indicate that the eight dispersants tested have similar toxicities to one another when mixed with Louisiana Sweet Crude oil. Results also indicate that the dispersant-oil mixtures are generally no more toxic to the test species than oil alone. They would generally be categorized in the moderate range.

Let me emphasize that the toxicity tests discussed today have been conducted on sensitive aquatic species, using standard laboratory methods that are

consistent with the National Contingency Plan, Subpart J. These standard methods are designed to test sensitive species to ensure that we are most cautious and maximally protective in determining the relative hazard of pollutants. The species used are widely considered to be representative of species found in the Gulf and are tested during a juvenile life stage, when organisms are even more sensitive to pollutant stress.

Let me also be clear in explaining that during these tests we continue to increase concentrations of the oil-dispersant mixture until we find toxicity effects that allow a relative comparison of dispersants to be made to each other. These tests were conducted over a range of concentrations, including those much greater than what aquatic life is expected to encounter in the Gulf.

We also have fluorescence data that indicate the dispersants are working to keep the oil away from the shore.

These data are important, but continued monitoring is necessary. We will continue monitoring efforts to ensure that dissolved oxygen levels do not decrease below levels of concern. To date, we have not seen dissolved oxygen levels fall below levels of concern to aquatic life.

So while more needs to be done, the picture is becoming clearer. We see that the dispersants are working to keep oil off our precious shorelines and away from sensitive coastal ecosystems. We also see that the dispersants are less toxic than the oil being released into the Gulf. We see further that the dispersant-plus-oil mixtures have roughly the same toxicity as the oil itself.

To date, monitoring data have indicated no dispersant constituents away from the wellhead. EPA monitoring has not found dispersant chemicals in water or sediment near coasts or wetlands. And to ensure that there is no confusion, I remind you that no dispersant application near wetlands or any other shore lines is permitted.

By law, dispersants are not to be used within three miles of the coast. BP's application both on the surface and undersea was primarily concentrated around the source of the leak, some 50 miles offshore.

I will close by emphasizing that we will continue to monitor and ask the hard questions until we more fully understand the long term effects of the BP oil spill. Additional investigations are required to ensure the long

term recovery and restoration of the Gulf. At every step of the way, we are going to continue to follow the science.

We have taken nothing for granted – as seen by the fact that we are here today, discussing testing that Administrator Jackson ordered to confirm what BP was telling us. We have constantly questioned, verified, and validated decisions with monitoring, analysis, and use of the best available science and data.

EPA is fully committed to working the people of the Gulf Coast, our federal partners, the scientific community and NGOs toward the recovery of the Gulf of Mexico and the restoration of its precious ecosystem.